



CHAPTER xxi

An Act to confer further powers on the Royal Wanstead School and for other purposes. [9th July 1959.]

WHEREAS in the year eighteen hundred and twenty-seven an institution originally called "the Infant Orphan Asylum" was formed for maintaining and educating orphans of both sexes from three months until seven years of age and the same which for some time was carried on at Hackney in the county of Middlesex and subsequently on certain hereditaments at Dalston in the same county is now carried on in premises erected on certain ground and hereditaments provided for the purpose at Snaresbrook in the borough of Wanstead and Woodford in the county of Essex and in the urban district of Sawbridgeworth in the county of Hertford:

And whereas by the Infant Orphan Asylum Act 1843 the presidents vice-presidents treasurer and governors of the said institution were incorporated as a corporate body by the name of "the Presidents Vice-Presidents Treasurer and Governors of the Infant Orphan Asylum" (hereinafter referred to as "the Corporation"):

And whereas by the Royal Wanstead School Act 1939 the name of the Corporation was changed to "the Royal Wanstead School":

And whereas the powers of investment of the Corporation are unduly restricted and it is expedient in order to carry out more effectively the objects and purposes of the Corporation that the powers of investment of the Corporation should be enlarged and extended as provided by this Act:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short and
collective
titles.

1.—(1) This Act may be cited as the Royal Wanstead School Act 1959.

(2) The Royal Wanstead School Acts 1843 and 1939 and this Act may be cited together as the Royal Wanstead School Acts 1843 to 1959.

Interpretation.

2. In this Act unless the context otherwise requires—

“ the Act of 1939 ” means the Royal Wanstead School Act 1939;

“ the Corporation ” means the Royal Wanstead School;

“ the board ” means the board of governors or other the managing body for the time being of the Corporation.

Powers of
investment.

3.—(1) Any part of the capital or income of the Corporation which is not required for the time being for the purposes of the Corporation may be invested and may thereafter remain invested until so required.

(2) Investments held by the Corporation by virtue of the power conferred by the preceding subsection may consist either wholly of investments for the time being authorised by law for the investment of trust funds (in this section referred to as “ trustee securities ”) or partly of trustee securities and partly of investments made in or for any other of the modes or objects specified in subsection (8) of this section:

Provided that subsections (3) to (7) of this section shall have effect for the purpose of securing so far as may be that the investments so held shall comprise trustee securities the value whereof taken together is not less than one-third of the value of all the investments so held taken together.

(3) The Corporation shall on the earliest date after the passing of this Act on which it is practicable for the Corporation so to do divide into two parts (each of which may consist either of investments wholly or of money wholly or may consist partly of investments and partly of money) all investments and moneys which at that date are in the hands of the Corporation and represent or are such capital or income of the Corporation as is mentioned in subsection (1) of this section.

(4) On each occasion after the making of the division required by the last preceding subsection on which any investments or moneys come into the hands of the Corporation (otherwise than on a variation under subsection (6) or (7) of this section) and represent or are such capital or income of the Corporation as is mentioned in subsection (1) of this section the Corporation shall as soon as may be after the investments or the moneys as the case may be come into their hands divide them into two parts.

(5) A division required by either of the two last preceding subsections shall be such as to secure that of the two parts one is a part having at the date of the division a value equal to twice the value of the other part.

For the purposes of this subsection the references therein to value shall in relation to moneys be construed as references to their amount.

(6) As soon as may be after the division required by subsection (3) of this section or a division required by subsection (4) thereof has been made investments which were on the division allocated to the smaller part but were not then trustee securities shall be varied into or for trustee securities and moneys which were on the division allocated to the smaller part shall be invested in trustee securities.

(7) Investments of the Corporation may at any time be varied—

- (a) in the case of investments being trustee securities which are or represent investments or moneys allocated to the smaller part into or for other trustee securities;
- (b) in the case of other investments into or for any of the modes or objects of investment specified in subsection (8) of this section.

(8) The modes or objects of investment referred to in paragraph (b) of the last preceding subsection are—

- (a) trustee securities;
- (b) freehold ground rents well secured in accordance with the report of a duly qualified valuer which ground rents the Corporation may purchase take receive and hold without licence in mortmain;
- (c) any investment or security which immediately before the passing of this Act was held by the Corporation;
- (d) the public stocks or funds or government securities of—
 - (i) any part of the United Kingdom and colonies;
 - or
 - (ii) any country mentioned in subsection (3) of section 1 of the British Nationality Act 1948; or
 - (iii) the United States of America;

(e) such of the following investments as in the opinion of the board are generally considered to be readily marketable and to form a good and safe security:—

(i) deposit receipts bonds debentures debenture stocks mortgages or securities of any corporation company or body whether municipal railway public utility commercial industrial investment trust mortgage insurance banking or of any other class registered or incorporated in the United Kingdom of Great Britain and Northern Ireland or the United States of America;

(ii) guaranteed lien preference preferred ordinary deferred or common stocks or shares (such stocks or shares not being subject to any liability for calls or other payments) of any such company as aforesaid being a company which has an issued capital of the nominal value of not less than five hundred thousand pounds or the equivalent thereof in the currency of the United States of America and which has paid dividends upon its ordinary capital at the rate of at least four per centum per annum for at least the five years next before the time of investment (of which fact a letter purporting to be signed by the secretary of the company or by a banker or member of a firm of bankers or by the secretary or manager of a joint stock bank or of any branch thereof shall be sufficient evidence) such stocks or shares having a quotation on the London Stock Exchange or the New York Stock Exchange and not being to bearer:

Provided that none of the funds of the Corporation which are to be invested in or for any of the modes or objects specified in paragraphs (a) (d) or (e) of this subsection shall be invested in any particular investments stock fund or security save on the recommendation of a person carrying on one or more of the following businesses in the city of London namely the business of a banker a merchant banker a finance house an issuing house or a stockbroker and the Corporation shall employ such a person to keep the funds of the Corporation under review at intervals not exceeding three months.

(9) The Corporation may retain any investment or other property real or personal which was held by the Corporation immediately before the passing of this Act or which may at any time thereafter be devised given or bequeathed to the Corporation though not being investments or property authorised to be acquired under this Act or may disclaim any such investment or property and may accept and retain or refuse any new shares

stock debentures or debenture stock in any company which may be offered to the Corporation in respect of any investment retained as aforesaid.

(10) Section 6 (Moneys may be invested) of the Act of 1939 is hereby repealed.

4. All costs charges and expenses preliminary to and of and Costs of Act. incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Corporation out of their general funds.

Table of Statutes referred to in this Act

Short title	Session and chapter
Infant Orphan Asylum Act 1843	6 & 7 Vict. c. xc.
Royal Wanstead School Act 1939	2 & 3 Geo. 6 c. xxix.
British Nationality Act 1948	11 & 12 Geo. 6 c. 56.

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 6d. net

PRINTED IN GREAT BRITAIN